

COMMITTEE AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB4076 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Trey Caldwell

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED COMMITTEE
SUBSTITUTE
FOR
HOUSE BILL NO. 4076

By: Caldwell (Trey) and Kane of
the House

and

Hall and Haste of the
Senate

PROPOSED COMMITTEE SUBSTITUTE

An Act relating to the Oklahoma Department of
Commerce; making an appropriation to the Pandemic
Relief Primary Source Revolving Fund; identifying
source; establishing amounts; providing purposes;
requiring and limiting the utilization of funds;
authorizing certain memorandums of understanding;
limiting scope; prohibiting certain memoranda terms;
authorizing and limiting the promulgation of rules
and utilization of procedures; requiring certain
reports and submissions to certain entities;
requiring appearance before certain joint committee;
limiting duration of certain requirements; providing
determination process; and providing for
noncodification; providing an effective date; and
declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law not to be
2 codified in the Oklahoma Statutes reads as follows:

3 There is hereby appropriated to the Pandemic Relief Primary
4 Source Revolving Fund from any monies not otherwise appropriated
5 from the Statewide Recovery Fund established in Section 255 of Title
6 62 of the Oklahoma Statutes, the sum of Twenty-one Million Six
7 Hundred Forty Thousand Ninety-one Dollars (\$21,640,091.00) or so
8 much thereof as may be necessary for award by the Oklahoma
9 Department of Commerce through grants to enhance industrial parks,
10 airparks, and ports to cover costs related to water, wastewater,
11 sewer, and broadband projects eligible under the provisions of the
12 American Rescue Plan Act of 2021 that support sites or surrounding
13 communities identified by the Department as having such needs prior
14 to the passage of this act and as discussed in the Transportation,
15 Infrastructure, and Rural Development Working Group. Such funds
16 shall be utilized in a manner consistent with the recommendations
17 adopted by the Joint Committee on Pandemic Relief Funding on April
18 15, 2026.

19 SECTION 2. NEW LAW A new section of law not to be
20 codified in the Oklahoma Statutes reads as follows:

21 The Oklahoma Department of Commerce may enter into memorandums
22 of understanding with other agencies of the State of Oklahoma for
23 the auditing, documentation, evaluation, implementation, oversight,
24 reporting, and management of funds and associated efforts related to

1 the appropriations made in this act; provided, that no such
2 memorandum of understanding shall require or include, as an option
3 or condition, the direct or practical transfer or relinquishment of
4 control by the agency appropriated such funds to budget, expend,
5 allocate, and request the distribution of the funds appropriated by
6 this act.

7 SECTION 3. NEW LAW A new section of law not to be
8 codified in the Oklahoma Statutes reads as follows:

9 The Oklahoma Department of Commerce may promulgate rules,
10 utilize existing rules, establish procedures, and utilize existing
11 procedures to implement the provisions of this act; provided, such
12 rules and procedures do not conflict with or impede the provisions
13 of this act.

14 SECTION 4. NEW LAW A new section of law not to be
15 codified in the Oklahoma Statutes reads as follows:

16 A. The Oklahoma Department of Commerce shall:

17 1. Submit to the Chairs of the Joint Committee on Pandemic
18 Relief Funding, or any successor Oklahoma House of Representatives
19 or Oklahoma State Senate legislative committee or joint committee,
20 as designated by the Speaker of the Oklahoma House of
21 Representatives and the President Pro Tempore of the Oklahoma State
22 Senate:

23

24

1 a. a written or electronic quarterly report detailing the
2 budgeting, expenditure, and management of all monies
3 appropriated in this act, and

4 b. a copy of all memorandums of understanding and
5 contracts with third parties entered into by the
6 Oklahoma Department of Commerce to facilitate, assist,
7 or administer powers and duties provided to the
8 Department under the provisions of this act; and

9 2. At the Joint Committee on Pandemic Relief Funding's request,
10 appear before the Joint Committee no later than six (6) months after
11 the effective date of this act, and as otherwise requested by the
12 Joint Committee, to provide a status update regarding the
13 implementation of the provisions of this act.

14 B. The provisions of subsection A of this section shall remain
15 applicable for the period of time that monies appropriated under
16 this act are being budgeted, expended, or managed in the state. The
17 ending of such period shall be determined by the State Treasurer,
18 and shall be reported to the Governor, the Speaker of the Oklahoma
19 House of Representatives and the President Pro Tempore of the
20 Oklahoma State Senate.

21 SECTION 5. This act shall become effective July 1, 2026.

22 SECTION 6. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
24

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3

4 60-2-17474 MKS 04/16/26

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24